

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

----- X

NYLA WARREN,

Plaintiff,

-against-

SUMMONS

THE CITY OF NEW YORK, POLICE OFFICER JOHN
ARNOLD, Tax No. 954502, DETECTIVE PATRICK
ROACH, Tax No. 908160, and POLICE OFFICERS JOHN
DOES NUMBERS ONE THROUGH TEN,

Index No.:

The Basis of Venue is:
Location of Incident

Defendants.

Plaintiff designates Queens
County as the place of trial.

----- X

To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
April 30, 2018

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER JOHN ARNOLD, Tax No. 954502, 106th Precinct, 103-53 101st St,
Ozone Park, NY 11417
DETECTIVE PATRICK ROACH, Tax No. 908160, Grand Larceny Division

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

NYLA WARREN,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER JOHN
ARNOLD, Tax No. 954502, DETECTIVE PATRICK
ROACH, Tax No. 908160, and POLICE OFFICERS JOHN
DOES NUMBERS ONE THROUGH TEN,

Defendants.

INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff NYLA WARREN, by her attorneys, Jacobs & Hazan, LLP, as and for her
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On May 25, 2016, at approximately 12:30 a.m., plaintiff Nyla Warren, while lawfully in the vicinity of 125th Street and 116th Avenue, Queens, New York, was subject to an unlawful stop, question, frisk, search, assault, battery, use of excessive force, false arrest, and false imprisonment by the defendant New York City police officers. Plaintiff was unlawfully transported to and detained at the 106th Precinct whereat she was unlawfully fingerprinted, photographed, and charged with serious felony and misdemeanor crimes that plaintiff did not commit and that the defendant officers lacked any objective factual basis or probable cause to accuse her of committing. The defendant police officers maliciously prosecuted plaintiff and denied plaintiff the right to due process and a fair trial when they unlawfully initiated a criminal prosecution against plaintiff without probable cause and based upon false, misleading and incomplete information provided by defendants to the Queens DA's Office. until January 30, 2017 when all charges against plaintiff were dismissed and sealed in their entirety. Plaintiff was deprived of her constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, assaulted, battered, subjected to excessive force, confined, falsely arrested, falsely imprisoned, denied the right to a fair trial, and maliciously prosecuted plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff NYLA WARREN is a resident of the state of New York.

3. Defendant POLICE OFFICER JOHN ARNOLD, Tax No. 954502, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Defendant POLICE OFFICER JOHN ARNOLD, Tax No. 954502, is and was at all times relevant herein, assigned to the 106th Precinct.

5. Defendant POLICE OFFICER JOHN ARNOLD, Tax No. 954502, is being sued in his individual and official capacity.

6. Defendant DETECTIVE PATRICK ROACH, Tax No. 908160, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Defendant DETECTIVE PATRICK ROACH, Tax No. 908160, is and was at all times relevant herein, assigned to the Grand Larceny Division.

8. Defendant DETECTIVE PATRICK ROACH, Tax No. 908160, is being sued in his individual and official capacity.

9. Defendant New York City Police Officers John Does #s 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

10. Defendant Police Officers John Does #s 1-10 are being sued in their individual and official capacities.

11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

12. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

13. Plaintiff in furtherance of her causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the General Municipal Law Section 50 and in accordance with New York State law.

14. In accordance with New York State law and General Municipal Law Section 50, plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on November 9, 2017.

15. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

16. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

17. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

18. By way of background, on May 24, 2016 plaintiff Nyla Warren went on a first date with an individual named Andrew Gargano whom plaintiff met a few days earlier while she was shopping at a store.

19. Shortly before midnight on May 24, 2016 plaintiff Nyla Warren was a passenger in a vehicle driven by Andrew Gargano when defendants allegedly observed Andrew Gargano switch lanes without signaling and defendants then turned on the torrent lights to their patrol vehicle for the purpose of pulling Andrew Gargano over for a traffic violation.

20. However, Andrew Gargano did not pull his vehicle to the side of the road when the defendants attempted to pull him over.

21. Instead, Andrew Gargano accelerated his vehicle, reaching speeds of over 100 miles per hour, ran through approximately eight (8) red traffic lights, drove into oncoming traffic, hit another vehicle on the road, and drove into a light pole.

22. Plaintiff Nyla Warren became terrified about the fact that Mr. Gargano did not stop for the police officers when they signaled for him to pull over and because he was driving at such a high rate of speed, in such a reckless manner.

23. Plaintiff screamed at Mr. Gargano and told him to pull the vehicle over, but he ignored plaintiff and did not pull the vehicle over.

24. Plaintiff did not have any knowledge about why Mr. Gargano refused to pull his vehicle over for the police officers, and plaintiff in no way encouraged Mr. Gargano to evade the officers or to disobey the officers' instructions to pull the vehicle over.

25. Plaintiff even attempted to open the passenger door of the vehicle so that she could jump out of the vehicle while it was moving because she thought she might die if she remained in the vehicle. However, plaintiff was not able to open the door to the vehicle because of heightened pressure on the outside of the car door created by the high rate of speed the car was being driven.

26. Mr. Gargano crashed his vehicle crashed into the telephone pole at approximately 12:00 am on May 25, 2016 in the vicinity of 125th Street and 116th Avenue, Queens, New York.

27. After Andrew Gargano crashed the vehicle into the telephone pole he immediately exited the vehicle without even checking to see whether plaintiff was physically injured and fled the scene of the crash on foot for approximately three blocks where he was apprehended by defendants.

28. The defendant police officers pursued Andrew Gargano after he fled the scene of the accident.

29. All of the police officers pursued Andrew Gargano when he fled the scene of the crash on foot, and none of the officers stopped at the scene of the crash to determine whether there were any injured people who required assistance, including medical assistance, or to secure the accident scene or to safeguard evidence at the scene of the accident.

30. The crash caused the airbags of the vehicle to deploy.

31. The deployed airbags and the impact of the crash caused plaintiff to suffer significant injuries to her head, leg, hip, ribs, and body.

32. Plaintiff spent approximately 15 minutes trying to exit the vehicle due to the fact that the airbags deployed and because the sides of the vehicle were warped by the crash.

33. Plaintiff finally was able to exit the vehicle and called her mother, who called taxi to pick up plaintiff and drive her to the hospital to get treatment for her injuries.

34. While claimant was sitting outside of the vehicle waiting for a taxi cab, the defendant police officers approached plaintiff and unlawfully stopped, questioned and frisked plaintiff without legal justification or probable cause.

35. Plaintiff immediately informed the police officers that she was the passenger in the vehicle involved in the crash, that the driver had fled the scene and that she did not own the vehicle.

36. On May 25, 2016, at approximately 12:30 a.m., plaintiff was lawfully in the vicinity of 125th Street and 116th Avenue, Queens, when the defendant police officers unlawfully stopped, questioned, frisked, and searched plaintiff without reasonable suspicion or probable cause.

37. AT no time relevant herein did plaintiff commit a crime or violate the law in any manner, nor did the officers possess reasonable suspicion or probable cause to arrest claimant for committing a crime.

38. At the time of plaintiff's arrest, the defendant police officers clearly had no probable cause to arrest plaintiff in connection to the car accident, any contraband allegedly recovered in the vehicle that was driven by Andrew Gargano was not in the possession, custody or control of plaintiff.

39. At no time relevant herein did the defendant police officers recover\ any drugs, weapons, or other illegal contraband from plaintiff or from plaintiff's possession, custody or control.

40. Nevertheless, plaintiff was falsely arrested and unlawfully handcuffed by defendant officers without legal justification or probable cause.

41. The handcuffs placed on plaintiff were unreasonably tight on plaintiff's wrists, causing plaintiff to suffer pain and discomfort.

42. Plaintiff told the defendant police officers that the handcuffs were hurting her wrists, and asked the defendant police officers to loosen the handcuffs, but the defendant police officers ignored plaintiff and failed to loosen the handcuffs.

43. The unreasonably tight handcuffs were the direct and proximate cause of the serious physical injuries to plaintiff's wrists.

44. Plaintiff was transported by the defendant police officers to the 106th Precinct against her will, where she was photographed, searched, fingerprinted and then handcuffed to a bench in the precinct with shackles on her ankles, causing severe pain top her wrists.

45. After many hours of being unlawfully seized by the officers, plaintiff was transported from the 106th Precinct to Queens County Central Booking.

46. The defendant police officers provided the District Attorney's Office with false, misleading and/or incomplete information about the facts that allegedly led them to believe that plaintiff committed a crime.

47. Based upon the false, misleading and/or incomplete information provided to the District Attorney's Office by the defendant police officers, a prosecution was initiated against plaintiff.

48. On May 27, 2016, at approximately 10:00 am, after being unlawfully detained for approximately 58 hours, plaintiff was arraigned, charged with crimes she did not commit and for which the defendant police officers had no legal justification to accuse her of committing, and released on her own recognizance.

49. Plaintiff was charged with Criminal Possession of a Weapon in the Fourth Degree, Criminal Possession of a Forged Instrument in the Second Degree, Unlawful Possession of a Skimmer Device in the Second Degree, and Unlawfully Possession of Marijuana.

50. On January 18, 2017, plaintiff testified before a Grand Jury.

51. On January 18, 2017, the Grand Jury determined that there was not probable cause to prosecute plaintiff for any crime and returned No True Bill.

52. Plaintiff was forced to appear in court on approximately eight occasions until all charges were dismissed and sealed in their entirety on January 30, 2017.

53. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, seizure, false arrest and imprisonment, assault, battery, use of excessive force, denial of the right to a fair trial, and malicious prosecution of plaintiff.

54. The unlawful stop, question, frisk, search, seizure, false arrest and imprisonment, assault, batter, use of excessive force, denial of the right to a fair trial, and malicious prosecution of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

55. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 54 with the same force and effect as if more fully set forth at length herein.

56. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be seized, unlawfully searched, assaulted, battered, subjective to excessive force, falsely arrested, and falsely imprisoned, without reasonable suspicion and/or probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

57. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

58. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.

59. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

60. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York and the United States Constitution.

61. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

62. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

63. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

64. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 63 with the same force and effect as if more fully set forth at length herein.

65. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

66. The conduct of defendants in stopping, frisking, and searching plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

67. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

68. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

69. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

70. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

71. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 70 with the same force and effect as if more fully set forth at length herein.

72. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

73. Defendants lacked probable cause to search plaintiff.

74. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

75. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

76. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

77. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

78. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 77 with the same force and effect as if more fully set forth at length herein.

79. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

80. Defendants commenced and continued a criminal proceeding against plaintiff.

81. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which she was prosecuted.

82. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

83. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

84. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

85. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

86. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

87. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 86 with the same force and effect as if more fully set forth at length herein.

88. The use of excessive force by defendants by, amongst other things, by tightly handcuffing plaintiff constituted objectively unreasonable physical seizures of plaintiff in violation of her rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

89. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION

Assault

90. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 89 with the same force and effect as if more fully set forth at length herein.

91. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, that such acts caused apprehension of such contact in the plaintiff.

92. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

93. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

94. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

95. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Battery

96. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 95 with the same force and effect as if more fully set forth at length herein.

97. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner handcuffed plaintiff excessively tightly without her consent and

with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

98. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

99. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

100. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

101. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Negligence

102. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 101 with the same force and effect as if more fully set forth at length herein.

103. Defendants owed a duty of care to plaintiff.

104. To the extent defendants claim that the injuries to plaintiff's persons by the defendant police officers was unintentionally caused and that the force used by the defendants against him was unintentional, then the defendants breached that duty of care by handcuffing plaintiff in an excessively tight and painful manner.

105. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

106. All of the foregoing occurred without any fault or provocation by plaintiff.

107. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

108. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

109. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TENTH CAUSE OF ACTION**Denial of Right to Fair Trial**

110. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 109 with the same force and effect as if more fully set forth at length herein

111. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the New York County District Attorney's Office.

112. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the District Attorney's Office.

113. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the District Attorney's Office.

114. In withholding/creating false evidence against plaintiff Nyla Warren and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

115. As a result of the foregoing, plaintiff Nyla Warren, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of her constitutional rights.

116. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

117. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

118. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

ELEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

119. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 118 with the same force and effect as if more fully set forth at length herein.

120. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Nyla Warren. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

121. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

122. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

123. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

124. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

125. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TWELVTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

126. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 125 with the same force and effect as if more fully set forth at length herein.

127. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

128. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

THIRTEENTH CAUSE OF ACTION**Failure to Intervene**

129. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 128 with the same force and effect as if more fully set forth at length herein.

130. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

131. Defendants failed to intervene to prevent the unlawful conduct described herein.

132. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, she was put in fear of her safety, and she was humiliated and subject to other physical constraints.

133. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

134. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

135. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

136. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

137. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Nyla Warren demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
April 30, 2018

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
April 30, 2018

/s/
DAVID M. HAZAN